SEMEGAL INVESTMENTS (PRIVATE) LIMITED
Versus
POLOMO ENTERPRISES (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
V. NDLOVU J
HARARE; 10 November 2025, 22 January 2026

Trial

G. Maromo, for the Plaintiff
S. Mzondiwa, for the Defendant

V. NDLOVU J: These are proceedings where the Plaintiff seeks repayment of USD 124,251.00 allegedly advanced to the Defendant as a loan. The Plaintiff prays for the following relief:

1. The Defendant shall pay to the Plaintiff the sum of USD 124 251.00 within seven days of being served with this order.
2. The Defendant shall pay interest on the amount in (1) above, at the prescribed rate, calculated from 15 March 2025 to the date of full and final payment.
3. The Defendant shall bear the Plaintiff's costs of this suit on the Legal Practitioner and Client scale.

BACKGROUND

The Plaintiff is a private company registered in Zimbabwe, specialising in agricultural commodity brokerage and operating out of Harare. The Defendant is also a private company registered in Zimbabwe, engaged in transport services. The Plaintiff asserts that in February and March 2024, the Defendant's director, Mr Saaim Sidaar, requested a loan of USD 124,251.00 from the Plaintiff through its agent, David Christopher Smith. The Plaintiff asserts that it advanced the loan, conditioned on repayment to Taten Trading (Private) Ltd, the Plaintiff's creditor, by the 30th of April 2024. Despite demands, the Defendant failed to repay the amount, prompting the Plaintiff to seek an order for the refund plus interest from the 15th of March 2025.

In the alternative, the Plaintiff pleads unjust enrichment, asserting that the Defendant unlawfully retained the loan amount.

The Defendant denies any loan agreement. It maintains that the sum of USD 84,551.52 received was payment for soya beans sold to the Plaintiff on behalf of Taten Trading. It denies receiving any further cash payments and insists that the Plaintiff's claim is baseless.

PROCEEDINGS BEFORE THE COURT

The Plaintiff called two witnesses, Mr Roy Omerod and Mr David Smith. Their collective testimony established that Taten Trading, facilitated by David Smith, sold a consignment of soya beans to the Plaintiff. David Smith testified that he acted as an agent for Taten Trading (Private) Limited in the sale of soya beans, facilitating the transaction through the Defendant, which functioned as the transporter of the product. The purchase price for the soya beans was purportedly structured as a loan to the Defendant, intended for onward transmission to Taten Trading by no later than April 30, 2024. During his testimony, Mr Smith stated that he collected USD 39,699 in cash from the Plaintiff, which he claimed to have handed over to the Defendant's employees at the instruction of Mr Saaim Sirdar, in three instalments via WhatsApp messages.

Mr Saaim Sirdar, the Defendant's director and witness, denied any loan agreement and insisted that the USD 84 551.51 received was solely for soya beans sold by the Defendant to the Plaintiff for and on behalf of Taten Trading. He denied ever requesting Mr Smith to collect any money from the Plaintiff on the Defendant's behalf. In fact, he denied ever receiving any cash payments from the Plaintiff, in addition to the bank transfer. He further claimed he had never dealt directly with Taten Trading, only through Mr Smith.

ISSUES FOR DETERMINATION

a) What was the purpose of the payment of USD84 551.52 made to the Defendant by the Plaintiff?
b) Whether or not the Plaintiff advanced a further sum of USD39 699 or any other amount to the Defendant in cash, and for what purpose?
c) Whether or not the Defendant is unjustly enriched to the tune of USD124 551.52 or any other sum?

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APPLICATION OF THE LAW TO THE FACTS

1. **What was the purpose of the payment of USD84 551.52 made to the Defendant by the Plaintiff?**

The Plaintiff contends that the payment of USD 84,551.52 constituted a loan advanced to the Defendant, whereas the Defendant maintains that it was consideration for soya beans supplied. The determination of this issue must be guided by the well-established principle of evidence, articulated in *Sibanda* v *Yambukai Holdings (Pvt) Ltd & Anor HH 84/17,* that,

> "The celebrated rule of evidence that he who alleges must prove should always guide practitioners and parties when drafting court pleadings and preparing for court, unless an exception to the rule has been provided, as in cases of presumptions."

This principle underscores the Plaintiff's obligation, in this case, to establish, on a balance of probabilities, that the payment was indeed a loan. The Plaintiff has not produced any written loan agreement or documentary evidence substantiating its claim. While the bank transfer confirms that the payment was made, it is silent as to its purpose. The Plaintiff's refusal to join Taten Trading (Pvt) Ltd as a party deprived the proceedings of potentially clarifying evidence regarding the nature of the transaction.

The Supreme Court in *Delta Beverages (Pvt) Ltd* v *Murandu* SC 38/15 at p. 4 emphasised that parties must substantiate their averments with credible evidence. The court stated that,

> "I take the time to point out that parties are expected to argue their cases to persuade the court to see the merit, if any, in the arguments advanced for them. They are not expected to make bald, unsubstantiated averments and leave it to the court to make of them what it can."

Applying this principle, the Plaintiff's case suffers from a lack of corroboration. No documentary trail, contractual instrument, or independent evidence has been tendered to support the assertion that the payment was a loan. In contrast, the Defendant's explanation that the sum represented payment for soya beans supplied is consistent with the commercial context and remains plausible in the absence of contrary evidence.

Accordingly, on the balance of probabilities, the Plaintiff has failed to discharge its burden of proof. The court is therefore unable to accept the Plaintiff's characterisation of the payment as a loan.

2. **Whether or not the Plaintiff advanced a further sum of USD39 699 or any other amount to the Defendant in cash, and for what purpose?**

The Plaintiff contends that, in addition to the bank transfer of USD 84,551.52, it advanced further cash payments amounting to USD 39,699. This allegation, however, rests solely on oral testimony. During his evidence, Mr Ormerod indicated that he had records or documents relating to these payments, yet none were produced before the court.

In the absence of documentary corroboration, the court cannot rely on bald assertions. The principle enunciated in *Sibanda* v *Yambukai Holdings (Pvt) Ltd & Anor* supra that "he who alleges must prove" is directly applicable. Where a party alleges the existence of a financial transaction, particularly one involving substantial sums of money, it is incumbent upon that party to provide credible and verifiable evidence. Oral testimony unsupported by records, receipts, or other documentation falls short of the evidentiary threshold required.

The Plaintiff has failed to establish, on a balance of probabilities, that cash payments were made to the Defendant or to demonstrate the purpose for which they were allegedly advanced. The claim in respect of the USD 39,699, therefore, cannot succeed.

3. **Whether or not the Defendant is unjustly enriched to the tune of USD124 551.52 or any other sum?**

The Plaintiff has advanced, in the alternative, a claim founded on the doctrine of unjust enrichment. The requirements for such an action were clearly articulated in *Gamanje (Pvt) Ltd* v *City of Bulawayo* SC 94/04 at p. 8, it was articulated that,

> "The requirements for an action for unjust enrichment are, firstly, that the defendant has been enriched by the receipt of a benefit; secondly, that he has been so enriched at the expense of the plaintiff; thirdly, that the enrichment is unjustified (in the sense that it would be unjust to allow the defendant to retain the benefit); fourthly, that the enrichment must not come within the scope of one of the classical enrichment actions; and fifthly, there must be no positive rule of law which refused an action to the impoverished person. See Industrial Equity v Walker 1996 1 ZLR 269 AT P 300; See also Wille's Principles of South African Law 8th edition at pp 633-5."

It was therefore incumbent upon the Plaintiff to demonstrate, on a balance of probabilities, that the Defendant received a benefit, that such benefit was obtained at the Plaintiff's expense, and that it would be unjust to permit the Defendant to retain it. In the present matter, although it is common cause that the Defendant received USD 84,551.52 by bank

transfer, the Plaintiff has failed to establish that this amount was advanced as a loan or otherwise without lawful cause. The defendant's explanation that the sum represented payment for soybeans supplied has not been effectively rebutted. Similarly, the alleged further cash payments of USD 39,699 remain unproven, as no documentary evidence was tendered to substantiate them.

Without proof that the Defendant's enrichment was unjustified, the Plaintiff cannot succeed in its alternative claim. To hold otherwise would be to invite the court to speculate, or to impose liability in the absence of evidence, and that is impermissible. The doctrine of unjust enrichment is not a catch-all remedy to cure evidentiary deficiencies; it requires a clear demonstration of unjustified benefit. The Plaintiff has failed to establish the essential elements of unjust enrichment. The claim must therefore fail.

DISPOSITION

The Plaintiff failed to prove that the USD 84,551.52 payment was a loan, did not substantiate the alleged cash advances of USD 39,699, and could not establish unjust enrichment, as no evidence was presented to support its claims.

ORDER

The Plaintiff's claim is dismissed with costs.

V NDLOVU J:

Maunga Maanda and Associates, Plaintiff's legal practitioners
Gill, Godlonton & Gerrans, Defendants' legal practitioners